

CASE N° _____

2017 & 2021 RULES - ICC ARBITRATOR STATEMENT ACCEPTANCE, AVAILABILITY, IMPARTIALITY AND INDEPENDENCE

Family Name(s): _____

Given Name(s): _____

Please tick all relevant boxes.

1. ACCEPTANCE

Acceptance

- ☐ I **accept** to serve as arbitrator under and in accordance with the ICC Rules of Arbitration (“**Rules**”).
(i) I confirm that I am familiar with the Rules. **(ii)** I accept that my fees will be fixed exclusively by the ICC Court (Article 2(4) of Appendix III to the Rules) and my expenses paid pursuant to the Note to Parties and Arbitral Tribunals on the Conduct of the Arbitration under the ICC Rules of Arbitration (“**Note**”). **(iii)** I acknowledge that my name, nationality, role, the method of my selection and the termination of my assignment will be published on the ICC Court’s website, unless otherwise agreed by the parties. **(iv)** I also acknowledge that my award(s) and procedural order(s) may be published pursuant to the Note. The processing operations under points (iii) and (iv) is necessary for the purposes of legitimate interests pursued by the parties, arbitrators and the public in accessing transparent information about ICC Arbitration to assist them in their decision making, and in pursuing their legitimate interests and fundamental procedural rights through arbitration. I can object to the publication if my interests and fundamental rights and freedoms override such legitimate interests.

Non-Acceptance

- ☐ I **decline** to serve as arbitrator in this case. *(If you tick here, simply date and sign the form without completing any other sections.)*

2. AVAILABILITY

- ☐ I **confirm**, on the basis of the information presently available to me, that I can devote the time necessary to conduct this arbitration throughout the entire duration of the case as diligently, efficiently and expeditiously as possible in accordance with the time limits in the Rules, subject to any extensions granted by the Court pursuant to Articles 23(2) and 31 of the Rules. I understand that it is important to complete the arbitration as promptly as reasonably practicable and that the ICC Court will consider the duration and conduct of the proceedings when fixing my fees (Article 2(2) of Appendix III to the Rules). My current professional engagements are as below for the information of the ICC Court and the parties.

Number of currently pending cases in which I am involved (*i.e. arbitrations and activities pending now, not previous experience; additional details you wish to make known to the ICC Court and to the parties in relation to these matters can be provided on a separate sheet*):

	As tribunal chair / sole arbitrator	As co-arbitrator	As counsel
Arbitrations			
Court litigation	<i>Not applicable</i>	<i>Not applicable</i>	

Case N° _____

- ☐ I have marked in the annexed calendar for the next 24 months all currently scheduled hearings and other existing commitments that would prevent me from sitting in a hearing on this matter.
- ☐ I have further marked in the box below or on a separate sheet any other relevant information regarding my availability.
- ☐ I have not marked any dates in the annexed calendar as I have no existing commitments that would prevent me from sitting in a hearing on this matter.

3. INDEPENDENCE and IMPARTIALITY

(Tick one box and provide details below and/or, if necessary, on a separate sheet)

In deciding which box to tick, you should take into account, having regard to Article 11(2) of the Rules, whether there exists any past or present relationship, direct or indirect, whether financial, professional or of any other kind, between you and any of the parties, their lawyers or other representatives, or related entities and individuals. Any doubt must be resolved in favour of disclosure. Any disclosure should be complete and specific, identifying *inter alia* relevant dates (both start and end dates), financial arrangements, details of companies and individuals, and all other relevant information. In deciding which box to tick and as the case may be in preparing your disclosure, you should also consult with care the relevant sections of the Note.

- ☐ **Nothing to disclose:** I am impartial and independent and intend to remain so. To the best of my knowledge, and having made due enquiry, there are no facts or circumstances, past or present, that I should disclose because they might be of such a nature as to call into question my independence in the eyes of any of the parties and no circumstances that could give rise to reasonable doubts as to my impartiality.
- ☐ **Acceptance with disclosure:** I am impartial and independent and intend to remain so. However, mindful of my obligation to disclose any facts or circumstances which might be of such a nature as to call into question my independence in the eyes of any of the parties or that could give rise to reasonable doubts as to my impartiality, I draw attention to the matters below and/or on the attached sheet.

Use one of the following options to sign the document:

- 1) Copy your signature from a Word document and paste it in this form.
- 2) Draw your ink signature ([click here for further assistance](#)).
- 3) Add your electronic signature.
- 4) Print the form, sign it and scan it.

Date: _____

Signature: _____

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2025

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